this paragraph. (August 20, 1943) (Pub. No. 144, 78th Cong.)

ACCRUED AMOUNTS DUE AND UNPAID AT DEATH

§ 5.2660 (a) Pension, compensation, or retirement pay authorized under laws administered by the Veterans' Administration, to which a person was entitled prior to the date of his death, and not paid during his lifetime, and due and unpaid for a period not to exceed one year prior to death under existing ratings or decisions, or those based on evidence in the file at date of death, shall, upon the death of such person, be paid as hereinafter set forth:

(1) Upon the death of a person receiving an apportioned share of the veteran's pension, compensation, or retirement pay, all or any part of such unpaid amount, to the veteran or to any other dependent or dependents as may be determined by the Administrator of Veterans Affairs.

(2) Upon the death of a veteran, to the surviving spouse; or if there be no surviving spouse, to the child or children, dependent mother or father in the order named.

(3) Upon the death of a widow or remarried widow, to the veteran's child or children.

(4) Upon the death of a child, to the surviving child or children of the veteran, entitled to death compensation or pension.

(5) In all other cases, only so much of the unpaid pension, compensation, or retirement pay may be paid as may be necessary to reimburse a person who bore the expense of last sickness and burial: *Provided, however,* That no part of any of the accrued pension, compensation, or retirement pay shall be used to reimburse any political subdivision of the United States for expense incurred in the last sickness or burial of such person.

(6) Payment of the benefits authorized by this paragraph will not be made unless claim therefor be received in the Veterans' Administration within one year from the date of death of the beneficiary or one year after July 13, 1943, whichever is later, and such claim is perfected by the submission of the necessary evidence within one year from the date of the request therefor by the Veterans' Administration: *Provided, however,* That a claim for compensation or pension by an apportionee, widow, child, or dependent parent shall be deemed to include claim for any accrued benefits. (Section 12, Pub. No. 144, 78th Cong.)

(b) A check received by a payee in payment of pension, compensation, or retirement pay shall, in the event of the death of the payee on or after the last day of the period covered by such check, become an asset of the estate of the deceased payee. (Section 12, Pub. No. 144, 78th Cong.)

(c) *Definitions.* For the purpose of paying accrued benefits under this paragraph the following definitions are for application:

(1) The term "spouse" shall mean the legal widow or widower of the veteran irrespective of the date of marriage.

(2) The term "child" is as defined in § 5.2514 (c), and includes an unmarried child who became helpless prior to attaining 18 years of age as well as an unmarried child over the age of eighteen but not over twenty-one years of age, who was pursuing a course of instruction within the meaning of § 5.2594 (b) at the time of the payee's death, provided only that upon the death of a child in receipt of pension or compensation, any accrued shall be payable to the surviving child or children of the veteran entitled to death pension or compensation.

(3) The term "dependent mother or father" is as defined in § 5.2514 (d) provided that the mother or father is dependent within the meaning of § 2.1057.

(d) (1) Where claim for the accrued amount due, under the laws in effect on or after March 20, 1933, was not filed prior to July 13, 1943, or where claim was filed prior to that date and disallowed either in whole or in part because of prior regulatory restrictions, a claim received prior to July 14, 1944, will be adjudicated under the provisions of this paragraph.

(2) A claim pending on July 13, 1943, will be considered a claim under this paragraph. (August 20, 1943) (Pub. No. 144, 78th Cong.)

[§§ 5.2662, 5.2664 and 5.2666 canceled August 20, 1943.]

FRANK T. HINES,
Administrator.

[F. R. Doc. 43-15244; Filed, September 17, 1943; 4:16 p. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Subchapter Z—Withdrawals, Restorations, Classifications, Land Transfers, and Executive Orders

[Public Land Order 157]

PART 298—PUBLIC LAND ORDERS

REVOKING EXECUTIVE ORDER NO. 8468 OF JULY 1, 1940; LOUISIANA

By virtue of the authority contained in the Act of June 25, 1910, c. 421, 36 Stat. 847, as amended by the Act of August 24, 1912, c. 369, 37 Stat. 497 (U.S.C., Title 43, secs. 141–142), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8468 of July 1, 1940, withdrawing all public lands in the State of Louisiana from settlement, location, sale, or entry and reserving them for classification and in aid of legislation, is hereby revoked.

HAROLD L. ICKES,
Secretary of the Interior.

AUGUST 9, 1943.

[F. R. Doc. 43-15259; Filed, September 17, 1943; 4:43 p. m.]

[Public Land Order 164]

PART 298—PUBLIC LAND ORDERS

WASHINGTON

Withdrawing public lands for use of the War Department as aerial gunnery and bombing ranges.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and to section 3 of the act of June 17, 1902, 32 Stat. 388 (U.S.C., title 43, sec. 416), it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department as aerial gunnery and bombing ranges:

WILLAMETTE MERIDIAN

T. 16 N., R. 23 E.,
Sec. 14, N½ and N½S½;
Sec. 24, NW¼.
T. 16 N., R. 24 E.,
Sec. 20, S½S½;
Sec. 22, NW¼NW¼, SW¼, S½SE¼, and NE¼SE¼;
Sec. 24, N½, SE¼SW¼, S½SE¼, and NE¼SE¼;
Sec. 20, W½SW¼;
Sec. 28, E½NE¼, SW¼NE¼, and S½NW¼.
T. 17 N., R. 29 E.,
Secs. 28 and 32.

The areas described aggregate 3,160 acres.

This order shall take precedence over, but shall not rescind or revoke, the withdrawal for reclamation purposes made by the order of April 26, 1937, of the Secretary of the Interior, so far as such order affects the above-described lands.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 6, 1943.

[F. R. Doc. 43-15260; Filed, September 17, 1943; 4:44 p. m.]

[Public Land Order 165]

PART 298—PUBLIC LAND ORDERS

WASHINGTON

Withdrawing public lands for use of the War Department for military purposes.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described areas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for military purposes: